



Learning Space

IAS MAINS 2020

ETHICS, INTEGRITY & APTITUDE

CASE STUDIES

MODULE - 11

CASE STUDY - 11

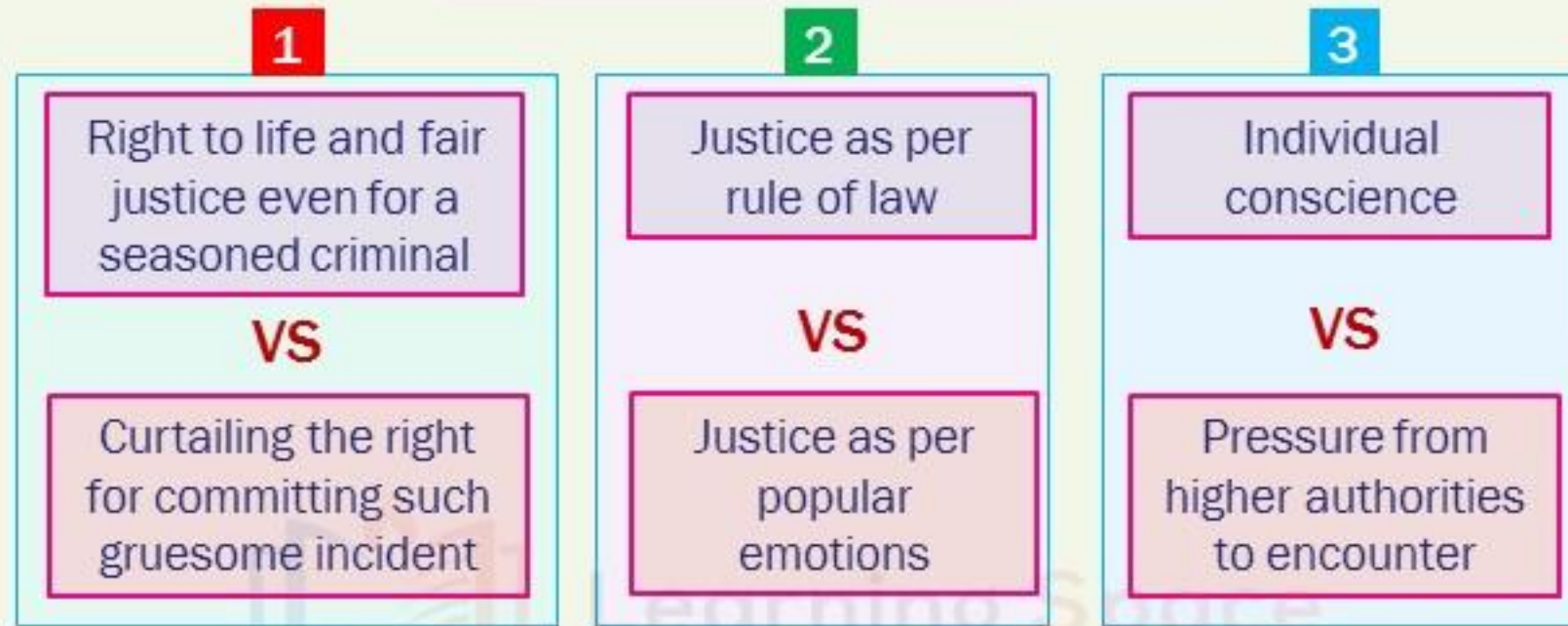
You are the Commissioner of Police of a large metropolitan city known for its IT / ITES industry and cosmopolitan nature. A gruesome incident that led to the unfortunate death of a young medico startled the civil society, which organized protests and agitations attended by scores of people demanding instant justice. This put huge pressure on the government, which in turn ordered you to find the culprits at the earliest. The local police could identify the suspects and arrest them within 24 hours. They could even collect corroborative evidence that ties the suspects to the killing of the medico. Due to the charged nature of the atmosphere among the common people, you are ordered by higher officials, under instructions from the political leaders of the ruling party, to stage an encounter and kill the suspects to pacify the crowds.

What choice would you make in this situation? Justify. What are the ethical issues involved in encounter killings? (250 words)

CASE STUDIES

The case reflects the incidences of popular narratives influencing the justice delivery in bias of popular emotions.

ETHICAL DILEMMA INVOLVED



As a commissioner of police, I take following steps:

- Restrain from encounter killing but ensure strong evidence in all forms is collected.
- Respect the emotional situation of the crowd without resorting to harsh measures to disperse them.
- Ensure that the evidence won't get tampered and myself won't get influenced so that the evidence is strong enough for the court to give capital punishment.
- Provide all support for the court to enable capital punishment.

ETHICAL ISSUES OF ENCOUNTER KILLING

- Not legally correct. Even in the case of terrorist Ajmal Kasab, he was tried and then hanged but only after proven guilty.
- Extent to which humanitarian concerns can be bypassed is ambiguous.
- Individual's discretion to determine the type of justice to be given to criminal is undemocratic.
- Not morally correct as it sets a bad precedent. In future, even innocent undertrials may be encountered to close the case.
- As Mahatma Gandhi said, "An eye for an eye makes the world blind". Thus, he killing doesn't necessarily end crime in society.

CONCLUSION

Extra judicial killings can be validated only on grounds of self-defence, killing in warfare or in extreme case, to protect lives of innocent people. In Indian administrative setup, police officers act as shields for innocent people. The sword of justice lies with judiciary.

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